

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
Brand-Name Beverage Products & Sole Source for OCONUS Support

1. Defense Logistics Agency (DLA) Troop Support, Indo-Pacific Subsistence Supply Chain, is the contracting activity.
2. The action being approved is the ability to sole source for DLA requirements due to exclusive distributor license.
3. The supplies to be acquired under this requirement consist exclusively of brand-name Coca-Cola bottled and canned nonalcoholic beverage products to support U.S. military and authorized federal customers located throughout the territory of Guam. This includes fixed military installations, dining facilities, exchange stores, vending machines, and U.S. Navy ships operating in or transiting through Guam. These beverages are essential to supporting troop readiness, hydration, and morale, especially in Guam's tropical climate and operational environment.

The required products include, but are not limited to, the following Coca-Cola beverage lines: Coca-Cola, Diet Coke, Coke Zero, Sprite, Fanta, Barq Root Beer, Powerade, Minute Maid products, and Dasani Bottle Water. Additional Coca-Cola beverages available in the regional catalog—such as seasonal flavors, and zero-sugar variations—may also be included, provided they are available for distribution within Guam. Products will be packaged in formats suitable for both individual resale and bulk use, such as 12 ounce (oz) cans, 20 oz bottles, and multi-pack options.

Gov't	Government	Government
Item #	Stock Number	Item Description
1	896001E117945	BEV, CARB, COKE ZERO, 12 OZ CAN, 12/PG, 2 PGS/BOX
2	896001E113662	BEV, CARB, COLA, SF, (DIET COKE), W/ASPARTAME, 12 OZ CAN, 24 CANS/BOX
3	896001E113661	BEV, CARB, COLA, SWT, (COKE CLASSIC), 12 OZ CAN, 24 CANS/BOX
4	896001E113664	BEV, CARB, LEMON-LIME, SWT, (SPRITE), 12 OZ CAN, 24 CANS/BOX
5	896001E116751	BEV, CARB, ORANGE, SWT, (FANTA), REFRIGERATOR PACK, 12/PG, 2/BOX
6	896001E113776	BEV, CARB, ROOT BEER, SWT, (BARQ), 12 OZ CN, 24 CANS/BX
7	896001E117952	BEV, CARB, SPRITE ZERO, 12 OZ CAN, 12/PG, 2 PGS/BOX
8	896001E116753	BEV, CARB, STRAWBERRY, SWT, (FANTA), REFRIGERATOR PACK, 12/PG, 2/BOX
9	896001E119762	BEV, SPORTS DRINK, GRAPE, (POWERADE), 20 FL OZ BOTTLE, 24 PER BOX
10	896001E119765	BEV, SPORTS DRINK, ORANGE, (POWERADE), 20 FL OZ BOTTLE, 24 PER BOX
11	896001E114662	ELECTROLYTIC BEV, FRUIT PUNCH, (SPORTS DRINK), 20 OZ BOTTLE, 24/BOX (POWERADE)
12	896001E114664	ELECTROLYTIC BEV, MOUNTAIN BLAST, (SPORTS DRINK), 20 OZ BTLE, 24/BOX (POWERADE)
13	891501E119763	JUICE, APPLE, (MINUTE MAID), 11.5 FL OZ CN, 24 PER BOX
14	891501E119764	JUICE, ORANGE, (MINUTE MAID), 11.5 FL OZ CN, 24 PER BOX
15	891501E220106	JUICE, ORANGE, MINUTE MAID, CHL, 59 OZ CO, 8/BOX
16	896001E115158	WATER, DRINKING, SPRING, DASANI, 1 LITER BOTTLE, 12/BOX
17	896001E115201	WATER, DRINKING, SPRING, DASANI, 20 OZ PLASTIC BOTTLE, 24/BOX

All items to be procured under this contract will be listed in the Schedule of Items and catalog provided by Coca-Cola, which will be incorporated into the resulting Blanket Purchase Agreement as the official reference for pricing and availability. The applicable Product Service Code (PSC) is 8960 – Beverages, Nonalcoholic.

This requirement will be fulfilled through a Firm-Fixed Price, Blanket Purchase Agreement utilizing Simplified Acquisition Procedures under FAR Part 13. The proposed contract will have up to five (5) year ordering period, consisting of one base year and four one-year extension periods. Based on historical ordering data from DLA Troop Support Indo-Pacific customer demand and prior Blanket Purchase Agreement (BPA) usage (SPE302-21-A-0004), the total estimated dollar value for this requirement is approximately \$35,000 per year.

All ordering will be conducted via delivery orders issued under the awarded BPA, and pricing will be in accordance with the contractor's approved product catalog and Schedule of Items.

4. The applicable statutory authority permitting other than full and open competition is 41 U.S.C. § 1901, as implemented by FAR 13.501(a), Sole Source Acquisition.

5. This acquisition requires the use of brand-name specifications for Coca-Cola beverages to ensure consistency, product recognition, and compliance with approved standards across U.S. military and federal customer locations throughout Guam—including Navy shore installations and ships. All Coca-Cola products must be sourced through licensed distributors authorized to sell and deliver within the designated territory, in accordance with Coca-Cola's proprietary manufacturing, quality control, and territorial licensing agreements.

Only authorized Coca-Cola distributors are legally and logistically capable of fulfilling this requirement. Accordingly, the identified sole-source vendor holds an exclusive distributor agreement with Coca-Cola Headquarters and is the only authorized commercial distributor for Coca-Cola products on the island of Guam. This exclusivity grants the vendor the sole ability to supply brand-name Coca-Cola beverages in full compliance with Coca-Cola corporate standards, trademark controls, and territorial distribution rights.

These products are essential to support mission readiness, hydration, and morale through their use in resale outlets, dining facilities, vending machines, and operational support activities. Coca-Cola beverages are widely recognized and preferred by end users, and their availability directly contributes to quality of life, particularly in remote and austere environments such as Navy ships or forward-operating locations.

Beverage bottling and distribution rights are highly controlled and geographically limited. Unlike generic food items, brand-name beverages must be bottled, warehoused, and distributed within specific corporate territories to ensure freshness, shelf life, and quality. Attempting to source these products from outside the authorized Guam distributor would not only violate corporate agreements, but also introduce significant logistical challenges and degrade product integrity.

Furthermore, this requirement is not merely for generic "soda" or "bottled water." The specific Coca-Cola brands are already integrated into automated vending systems, dining facility menus, resale operations, and inventory tracking. Substituting other brands would create logistical disruptions, require costly reconfiguration, and negatively affect customer satisfaction.

6. A request for information notice for this requirement was published on January 5, 2026, in the Contract Opportunities section at www.SAM.gov to notify potential sources of the Government's intent to solicit Coca-Cola nonalcoholic beverages.

7. As the Contracting Officer, I hereby determine that the anticipated prices will be fair and reasonable based on current comparisons to commercial pricing and historical prices paid by the Government. Negotiations will be conducted as necessary to obtain fair and reasonable pricing and favorable discounts.

8.

Based on this confirmation, the Government determined that the requirement may meet the conditions for a brand-name sole-source acquisition in accordance with FAR 13.501(a) when using simplified acquisition procedures for commercial items. This information directly informed the Government's acquisition strategy and determination of appropriate competition parameters for this requirement.

9. Specifications suitable for full and open competition have not been developed because the Government's requirement is for specific brand-name Coca-Cola beverages, which are proprietary and exclusively distributed within Guam by licensed Coca-Cola distributors. Developing a generic specification would not satisfy the requirement and would result in technically unacceptable offers.

10. Barriers to competition are not agency-imposed. They stem from Coca-Cola's proprietary licensing and distribution rights. No measures can be implemented to overcome this limitation without violating the brand's distribution agreements. Until Coca-Cola expands its distribution in Guam, only Coca-Cola Guam/Foremost Foods or distributors operating through them may fulfill this requirement.

11. As the Contracting Officer, I hereby certify that this justification is accurate and complete to the best of my knowledge and belief.

Date

Contracting Officer

I hereby certify that the requirements which form the basis of this justification are accurate, that these supplies meet the Government's needs in accordance with applicable specifications and that this justification is accurate and complete to the best of my knowledge and belief.

Date

Contracting Officer Representative

I have reviewed and hereby approve this justification.

Date

DLA Troop Support Competition Advocate